

A pre-trial order shall issue. Unless a party objects to this tentative ruling, gives notice of said objection and appears at the Case Management Conference, parties are deemed to have waived notice of trial AND asserted they will waive conflict on the record at the MSC allowing the trial judge to conduct the MSC.

15. CU0002713 Thomas Joseph Paone, et al. vs. Maxamillian Todd Collins

No appearances are required. On its own motion, the Court continues the case management conference to October 16, 2026, at 9:00 a.m. in Department A. Absent a stipulation of the parties to the contrary, Defendant shall file a responsive pleading, or Plaintiff shall file a request for default (as appropriate) or request for dismissal of Defendant at least two weeks prior to the continued case management conference date. The order to show cause date scheduled for October 12, 2026 is vacated in light of the proof of service filed by Plaintiff.

16. CU0002751 James Price, et al. vs. Less Stress Transport, LLC, et al.

No appearances are required. A notice of removal to federal court has been filed. The Court takes no further action on this matter. The parties shall advise the Court in writing and within five (5) court days should this matter be remanded in full or in part for any purpose to this Court.

17. CU0002810 Daniel Dion et al vs. Dana May Dion

No appearances are required. The Court has received the proposed stipulation to change venue. Upon stipulation of the parties, this matter is transferred to Sonoma County. The hearing date of August 24, 2026 and the OSC set for November 9, 2026 are hereby vacated in light of the stipulation of the parties.

18. PR0000914 In the Matter of James William Ness

Appearances are required. The Court is favorably inclined to order the parties to attend mediation, with costs of the same to be paid by the trust, pursuant to Probate Code section 17206 and *Breslin v. Breslin* (2021) 62 Cal. App.5th 801, 806 (“The probate court has the power to order the parties into mediation.”). The parties are hereby advised:

Mediation may result in a settlement of the matters that are the subject of this case and of any and all interested persons and parties interests therein. Settlement of the matter may result in an agreement for the distribution of assets of the above-referenced trust and of the estates of the settlors therein, however those assets may be held. Settlement of the matter may also result in an award of attorneys’ fees to one or more parties under *Smith v. Szeyller* (2019) 31 Cal.App.5th 450, 242. Interested persons or parties who do not have counsel may attend the mediation and participate.

Non-participating persons or parties who receive notice of the date, time and place of the mediation may be bound by the terms of any agreement reached at mediation without further action by the Court or further hearing. Rights of trust beneficiaries or prospective beneficiaries may be lost or forfeited by the failure to participate in mediation. Participation in mediation is a prerequisite to an evidentiary hearing. By failing to participate in mediation, a person or party will waive their right to an evidentiary hearing.